

25NWCV03555 25NWCV03555

County: los-angeles

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Case Number: 25NWCV03555 Hearing Date: July 13, 2026 Dept: C

TALAVERA vs FCA US LLC.

CASE NO.: 25NWCV03555

HEARING: 7/13/26 @ 9:30 AM

#12

TENTATIVE ORDER

Plaintiff MICHAEL TALAVERA's Motion for Sanctions in the amount of \$2,500 Pursuant to Code Civil Procedure § 871.26 is GRANTED.

Moving Party to give

NOTICE.

Plaintiff

MICHAEL TALAVERA (Plaintiff) moves for an order imposing mandatory monetary sanction in the sum of \$2,500.00 to be paid within 15 business days by Defendant FCA US LLC's attorneys of record, ONGARO PC, for their failure to comply with the initial deposition of a PMQ witness requirement pursuant to Code of Civil Procedure sections 871.26, subdivision (c) and (j)(2).

Background

This is a lemon law

case. Plaintiff alleges that on May 18, 2023, Plaintiff entered into a warranty contract with FCA regarding a 2023 Jeep Grand Cherokee, VIN: 1C4RJHAG0PC529388

(Subject Vehicle), which Plaintiff leased for a total price of \$35,365.96. Defects and nonconformities to warranty manifested themselves within the applicable express warranty period. The nonconformities substantially impaired the use, value and/or safety of the Subject Vehicle. (Complaint, ¶¶ 16-17.)

Legal
Standard

Specific
discovery rules apply to certain actions filed on or after January 1, 2025, under the Song-Beverly Consumer Warranty Act. The rules apply to actions against motor vehicle manufacturers that have elected to proceed under Code of Civil Procedure Title 10, chapter 12, §§ 871.20–871.30, which creates expedited procedures for actions seeking restitution or replacement of certain motor vehicles. (Code Civ. Proc., § 871.20, subd. (a).)

Code
of Civil Procedure section 871.26, subdivision (c) provides: “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of...(1) The plaintiff. (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant’s behalf. This deposition shall be limited to the topics listed in subdivision (i).”

“Unless
the party failing to comply with this section shows good cause...a court shall impose...[a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 971.26, subd. (j)(2).) For a defendant’s repeated noncompliance with subdivision (c), “a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so.” (Code Civ. Proc., § 871.26, subd. (j)(4).)

Discussion

I.

Defendant's

PMQ Witness Deposition

Plaintiff

contends that although Defendant produced James Bielenda (Bielenda) as its designated PMQ witness, his testimony established that he lacked the requisite knowledge concerning all Matters for Examination (MFE) Nos. 1–11. Plaintiff does not move for this Court to compel an additional deposition, instead Plaintiff moves for monetary sanctions.

In

opposition, Defendant argues that Bielenda was familiar with the service history of Plaintiff's vehicle. (Graham Decl., ¶ 8, Exhibit E [Bielenda Tr. 20:11 - 27:17; 29:06 – 30:12; 44:05 – 44:23].) He testified about the repairs performed on it and the warranty claims submitted in relation to those repairs. (Id., see also Graham Decl., ¶ 8, Exhibit E [Bielenda Tr. 33:02 – 34:15].) He also testified about Defendant's procedures when consumers make a request for a repurchase including the documents reviewed and the departments and personnel responsible for making those decisions and implementing them. (Graham Decl., ¶ 8, Exhibit E [Bielenda Tr. 13:25 – 15:06; 16:04 – 19:09; 36:01 – 42:13].) Accordingly, Defendant produced a competent PMQ witness and Plaintiffs' motion is without basis.

In

reply, Plaintiff reiterates arguments regarding Bielenda's inability to testify about Plaintiff's particular repurchase evaluation or Defendant's decision-making process.

The

Court finds that Defendant failed to produce a qualified PMQ. Under Code of Civil Procedure section 871.26, subdivision i, Defendant's PMQ's deposition is limited to the following topics:

(1) All warranties that accompanied the plaintiff's motor vehicle at the time of purchase or lease.

(2) Questions relating to the nature and extent of the entire service history, warranty history, and repairs relating to

the motor vehicle.

(3) Questions relating to recalls
applicable to the motor vehicle.

(4) Questions relating to a reasonable
number of Technical Service Bulletins or Information Service Bulletins
reasonably related to the nonconformities pertaining to the motor vehicle.

(5) Questions relating to relevant
diagnostic procedures consulted and followed while diagnosing the plaintiff's
concerns for the motor vehicle.

(6) Questions relating to relevant repair
procedures consulted and followed during the repairs for the motor vehicle.

(7) Questions relating to relevant
communications between the plaintiff and defendant regarding the motor vehicle.

(8) Questions relating to relevant
communications between the defendant and any dealership or other third parties
regarding the motor vehicle.

(9) If a pre-suit restitution or
replacement request was made, questions relating to why the defendant did not
replace the motor vehicle or provide restitution.

(10) If a pre-suit restitution or
replacement request was made, any nonprivileged evaluation prepared by the
manufacturer.

(11) If a pre-suit restitution or
replacement request was made, the manufacturer's policies and procedures
regarding the restitution or replacement of vehicles in response to a
consumer's request for restitution or replacement under the Song-Beverly
Consumer Warranty Act, in effect from the date of the notice of the consumer's
request for restitution or replacement of the vehicle to the present, and any
changes thereto.

Plaintiff

argues that Bielenda could not explain the basis of Defendant's denial to repurchase Plaintiff's vehicle. (Bielenda Tr. 40:9-41:14, 43:14-16.) Bielenda could neither explain, nor provide details concerning why Defendant's entire buyback analysis of Plaintiff's vehicle was completed in thirty-six minutes. (Bielenda Tr. 42:14-43:16.) Moreover, Bielenda testified that he has never seen a Customer Retention Analysis form ("CRA") which is supposed to document the evaluation. (Bielenda Tr. 15:9-11.) Bielenda could not identify any written policies for handling California repurchase requests. He testified that evaluators are trained through PowerPoint presentations prepared by counsel. (Bielenda Tr. 8:23-9:17; 10:13-21.) (Reply pp.3-4: 19-5.) This demonstrates that Bielenda was not able to respond to topics relating to why the defendant did not replace the motor vehicle or provide restitution, and the manufacturer's policies and procedures regarding restitution and replacement as required under section 871.26 (i)(9),(11). However, Plaintiff does not request that the Court compel the PMQ deposition; instead, Plaintiff only requests monetary sanctions in the amount of \$2500.

II.

Monetary

Sanctions

Plaintiff

moves for monetary sanctions in the amount of \$2,500 against Defendant for failing to comply with the initial deposition of Defendant's PMQ under Code of Civil Procedure section 871.26, subdivision (c)(1).

In

opposition, Defendant argues that it acted in good faith by "producing a standard, designated corporate witness within the statutory period and who testified in the general capacity required by the statute. The PMQ witness James Bielenda has testified as a PMK witness dozens of times this past year." (Graham Decl., ¶ 8, Exhibit E; Opp., 5: 13-14.) Moreover, Defendant argues that "Plaintiff's counsel made no efforts to meet and confer regarding the Matters for Examination No. 9-11 following the initial deposition of FCA US' PMQ witness James Bielenda." (Graham Decl., ¶ 9.)

The

Court finds that sanctions are warranted for Defendant's failure to comply with the requirements set forth under Code of Civil Procedure section 871.26. This section of the Code creates an expedited discovery and dispute resolution

process in lemon law matters and Defendant fails to show good cause for Defendant's failure to provide a PMQ able to answer the particular topics enumerated under the statute. As the statute mandates monetary sanctions for Defendant's non-compliance, the Court finds that the statutorily mandated \$2,500 in sanctions is warranted.

Accordingly,

Plaintiff's motion is GRANTED. Defendant's counsel of record is sanctioned in the amount of \$2,500 to be paid within 15 business days of this Order.